

Bhagwat Saran v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 6 May 2019 · WRIT - C No. - 15536 of 2019 · **Writ disposed; petitioner relegated to Clause 6.5 bill correction.**

HEADNOTE

A consumer seeking writ correction of an electricity bill was directed to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005. If the application is made to the named respondent within a week of the certified copy, the licensee's appropriate authority must dispose of it in accordance with law within 15 days. The writ was disposed of without examining the bill on merits and without costs.

FACTUAL SUMMARY

Bhagwat Saran filed a writ petition in the Allahabad High Court seeking correction of an electricity bill raised against him by the respondents, including the State of Uttar Pradesh and the power corporation. After hearing counsel for the petitioner, the Chief Standing Counsel, and counsel for respondent no.4, the Court treated the petition as a consumer billing-correction grievance against the distribution licensee.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer-under-6.5

HOLDING

A writ seeking correction of an electricity bill was disposed of by directing the consumer to approach the Power Corporation under Clause 6.5 of the U.P. Electricity Supply Code, 2005. An application made to respondent no.2 within a week of the certified copy of the order is to be disposed of by the appropriate authority of the corporation in accordance with law within 15 days. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer seeking writ correction of an electricity bill was directed to apply under Clause 6.5 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL

The Court did not examine the bill on merits and relegated the consumer to Clause 6.5. ¶ 1